CERNO GLOBUS

FIELD INTELLIGENCE

Issue 005 Tuesday, October 13, 2026 · Biweekly, 4 pages

Professional Services

Property Management · Independent Practices · Independent Agencies · Small Accounting Practices · Staffing Agencies · Brokerages and Agent Teams

Six trades, one publication. Every item is something that moves a number on your P&L, changes what you must do by law, or changes what parts and labor cost you.

IN THIS ISSUE

PROPERTY MANAGEMENT
HUD's NSPIRE scoring counts deficiencies in six new categories, including GFCI outlets, guardrails and HVAC, against public housing and multifamily inspection scores from October 1, 2026.

INDEPENDENT PRACTICES
CMS published the final GLOBE drug-pricing model on October 2, effective November 30, cutting Part B coinsurance on covered drugs for about a quarter of beneficiaries from April 1, 2027.

INDEPENDENT AGENCIES
Homeowners insurers posted a $16.5 billion underwriting profit in 2025, the first since 2019, and average approved rate increases slowed to 4.3 percent in the first half of 2026.

SMALL ACCOUNTING PRACTICES
The Senate passed the 65-provision Taxpayer Assistance and Service Act unanimously on September 30; the committee summary would lift preparer penalties to $250 and $1,000 and add PTIN continuing education.

STAFFING AGENCIES
Temporary help employment fell 10,900 in September, the largest monthly drop of the year, after August was revised from a gain of 6,800 to a gain of 200.

BROKERAGES AND AGENT TEAMS
Connecticut's SB 340 took effect October 1, requiring sellers' agents to put one- to four-unit listings on a public platform at or before first marketing, with fines up to $5,000 per violation.

BACKGROUND SIGNAL
The fraud that reads your invoices before it sends one

Read it online
This issue, and every one before it

RULE

California Regional MLS sued Compass on October 5 to defend its listing rules, a day before Compass's deadline to stop fining agents who publicly market office exclusives.

California Regional MLS filed a 119-page complaint in federal court in Manhattan on October 5. It asks a judge to declare its cooperation rules lawful under the Sherman Act and California's Cartwright Act and to bar Compass from suing over them. Compass's September 8 letter had demanded that CRMLS promise by 5 p.m. ET on October 6 not to fine agents who publicly market office exclusives, or face a federal antitrust suit.

The rule is CRMLS Rule 7.9, which requires an exclusive listing to reach the MLS within one business day of any public marketing. CRMLS issued 89 Rule 7.9 fines last year, eight against Compass agents, and has handled about 300 cases in 2026, about 75 on Compass listings.

Compass says it will file its own suit and has threatened to sue any MLS that will not change. Unlock MLS in Central Texas refused on October 6. Compass says MLSs covering more than 350,000 agents in 12 states already allow public marketing of office exclusives.

The case is days old. CRMLS says Compass wants to "free-ride" on listings contributed by thousands of cooperating brokerages, and warns that giving in could expose it to antitrust claims from buyers or buyer agents cut off from competing listings. Bright MLS research, cited by Inman, found MLS-listed homes sold for nearly 17% more, about $45,000 on a median-priced home.

What to do about it: Pull your MLS's cooperation rule this week and read the sections on office exclusives, public marketing and the fine schedule. Ask the MLS in writing whether it will change the rule after the Compass demand, and by when. Until a court or your board says otherwise, follow the rule you are under; CRMLS handled about 300 Rule 7.9 cases in 2026 alone. Put the seller's choice in writing with a listing-agreement addendum saying private marketing can reduce exposure, and cite the Bright MLS finding of nearly 17% higher MLS sale prices. Decide who pays an MLS fine, the agent or the office, before the first one arrives. If you list in Connecticut, the signed opt-out form became mandatory October 1. Have counsel review any policy change before you adopt it.

Real Estate News: CRMLS files suit against Compass · HousingWire: CRMLS sues Compass over cooperation rules · Inman: The MLS pushback is mounting (Oct. 13)

PROPERTY MANAGEMENT

TWO ITEMS

REGULATION

HUD's NSPIRE scoring counts deficiencies in six new categories, including GFCI outlets, guardrails and HVAC, against public housing and multifamily inspection scores from October 1, 2026.

Why it matters: HUD's September 29 scoring notice puts October 1, 2026 as the date deficiencies in six new affirmative requirements count toward an NSPIRE score: fire-labeled doors, GFCI outlets or breakers, guardrails, HVAC, interior lighting, and minimum electrical and lighting. The date had already slipped twice, to October 1, 2025 and then to now. It covers public housing and multifamily housing, not vouchers. Comments on the notice's revisions close November 30. If you manage HUD-assisted units, walk a sample of units this week for those six items before your next inspection.

Federal Register: NSPIRE Scoring Notice (Sept. 29)

DEMAND

Apartment List put the national median rent at $1,388 in September, down 0.4% on the year, with units taking 34 days to lease, the longest for any September since 2019.

Why it matters: The October report, published September 29, shows the first monthly decline since January, but year-over-year rent growth has risen five straight months from a record-low -1.6% in April. Vacancy fell to 7.0% from a 7.3% February peak and is still above the 2017-2019 average of 6.4%; the company says it will be over a year before it gets back there. Median rent is $1,220 for one-bedrooms and $1,374 for two. Compare your own days-to-lease with 34 and price renewals by unit type, not by the national number.

Apartment List National Rent Report (Oct. 2026)

INDEPENDENT PRACTICES

TWO ITEMS

MONEY

CMS published the final GLOBE drug-pricing model on October 2, effective November 30, cutting Part B coinsurance on covered drugs for about a quarter of beneficiaries from April 1, 2027.

Why it matters: The final rule (CMS-5545-F) covers single-source Part B drugs with over $100 million in spending, for beneficiaries in randomly selected ZIP codes, about 25 percent of Original Medicare enrollees. CMS says 94 percent of its illustrative drugs would carry 2 to 12 percent coinsurance instead of 20. Practices are not participants and keep buying and billing, but Medicare pays more: on a $100 allowed amount, $90 instead of $80. Pull your top ten Part B drugs by spend and ask your MAC how affected ZIP codes will be flagged on claims.

Federal Register: GLOBE Model final rule (Oct. 2)

REGULATION

CMS proposed on October 8 to loosen CLIA laboratory director requirements, cutting required experience on several routes from two years to one and accepting 20 hours of continuing education.

Why it matters: The proposed rule (CMS-3478-P) would let moderate-complexity directors qualify with one year of experience or 20 CE credit hours, and cut high-complexity physician directors' experience from two years to one. It would loosen personnel rules that took effect December 28, 2024, and drop SARS-CoV-2 reporting. Comments are due December 7 (docket CMS-2026-3235). If you run or plan an in-office moderate-complexity lab, ask your director of record which qualification route applies; the text discusses dermatology office labs but does not otherwise address physician office labs generally.

Federal Register: CLIA proposed rule (Oct. 8)

INDEPENDENT AGENCIES

TWO ITEMS

INSURANCE

Homeowners insurers posted a $16.5 billion underwriting profit in 2025, the first since 2019, and average approved rate increases slowed to 4.3 percent in the first half of 2026.

Why it matters: AM Best's market segment report, covered September 30, puts the 2025 net combined ratio at 87.8, against 99.2 in 2024 and 110.9 in 2023, helped by a mild catastrophe year and about $4.1 billion of reserve releases. Average approved homeowners increases fell from 13.5 percent in 2024 to 7.6 percent in 2025, and reinsurance pricing has softened from its 2023 peak. Results still vary: California's direct combined ratio was 205.3, Missouri's 131.5. Ask your homeowners carriers whether appetite and commissions are reopening, and tell renewal clients early whose increases are shrinking.

IA Magazine: Homeowners rebounds with $16.5B profit

REGULATION

The Senate passed a clean seven-year Terrorism Risk Insurance Program reauthorization the week of September 28; it must still be reconciled with a House bill passed 373-15 in July.

Why it matters: S. 4395 has 42 cosponsors and no structural changes; the current program expires December 31, 2027. The House passed its own version in July with structural changes the report does not describe. The chambers must reconcile before President Trump can sign, and the Big I is aiming for the lame-duck session after the November election. A clean bill leaves terrorism coverage terms unchanged. Tell commercial property clients the backstop is in place through 2027, and watch the lame-duck calendar before quoting renewals that run into 2028.

IA Magazine: Senate passes TRIA reauthorization

SMALL ACCOUNTING PRACTICES

TWO ITEMS

MONEY

The Senate passed the 65-provision Taxpayer Assistance and Service Act unanimously on September 30; the committee summary would lift preparer penalties to $250 and $1,000 and add PTIN continuing education.

Why it matters: The House is in recess until November, so nothing binds yet. Per Senate Finance's summary, penalties rise on enactment: failure to furnish a return copy and incorrect information returns go to $250 from $65, and check-endorsement and due-diligence failures to $1,000 from $665. Non-credentialed paid preparers would need up to 18 hours of CE a year starting 180 days after enactment; CPAs, attorneys and EAs are exempt. A missing PTIN draws $250, capped at $75,000. Audit who in your office signs as an unenrolled preparer and review your due-diligence file checklists now.

Senate Finance: Senate approves TAS Act (Sept. 30) · Senate Finance: TAS Act summary of provisions (PDF) · Journal of Accountancy: Senate approves reforms (Oct. 1)

DEMAND

Treasury and the IRS proposed rules on October 1 for the new Section 25F credit, up to $1,700 per person or $3,400 per couple for scholarship donations, starting in 2027.

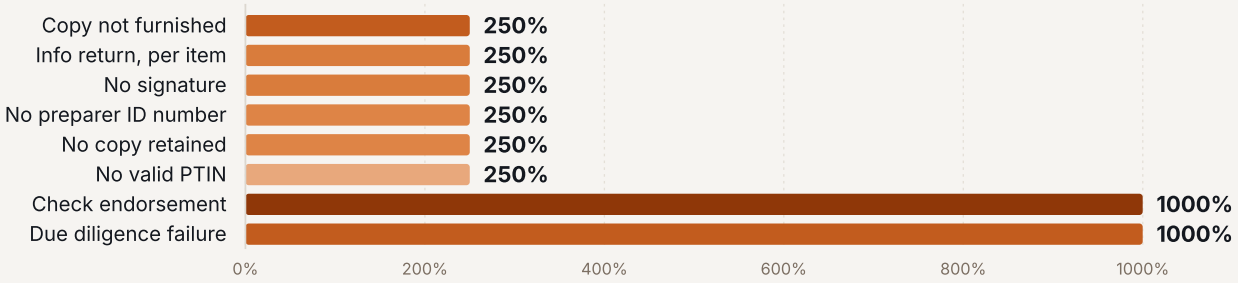
Why it matters: The credit is nonrefundable and carries forward five years. Under temporary regulations (T.D. 10057), scholarship-granting organizations must give donors acknowledgments with a unique donor number and report contributions to the IRS. An ordering rule keeps the maximum federal credit for clients who also claim a state credit. Comments on the proposed regulations (REG-117199-25) are due December 1. Add the credit to your 2027 planning letters and tell donors to keep the acknowledgment.

Journal of Accountancy: Education tax credit proposed regs

INFOGRAPHIC 1 / PREPARER PENALTIES

Under the Senate's tax administration bill, six preparer failures would cost $250 each and two would cost at least $1,000.

Proposed penalty per failure, dollars; Senate Finance Committee summary of the Taxpayer Assistance and Service Act, passed the Senate Sept. 30, 2026; the PTIN penalty applies 18 months after enactment, the rest on enactment



The bill raises the first two penalties from $65 and the last two from $665; check endorsement is the greater of $1,000 or the amount. Caps on the $250 penalties run $50,000 to $75,000; the $1,000 penalties have no cap. Nothing applies until the House acts and the president signs. Use the amounts to price a review of your own signature, copy-retention and due-diligence procedures. Senate Finance: TAS Act summary of provisions (PDF)

INFOGRAPHIC 2 / STAFFING BY SEGMENT

Every staffing segment rose in the last week of September, but office and clerical sits at 60 while professional is at 124.

SIA-Bullhorn Staffing Indicator, indexed value: week ending Sept. 19 (low end, released Sept. 29) to week ending Sept. 26 (high end, released Oct. 6); last four weeks preliminary



Industrial is up 15% on the year and commercial 11%; office and clerical is 8% below a year ago despite a week of gains. Professional (124) and IT (119) run well above the national 106. Compare the mix of your own book with these segments before setting fourth-quarter recruiter quotas; the newest week is the most likely to be revised. SIA: SIA-Bullhorn Staffing Indicator, Oct. 6, 2026

STAFFING AGENCIES

TWO ITEMS

LABOR

Temporary help employment fell 10,900 in September, the largest monthly drop of the year, after August was revised from a gain of 6,800 to a gain of 200.

Why it matters: Bureau of Labor Statistics data released October 2, reported by Staffing Industry Analysts, put temp help down 0.4 percent on the month and up 0.6 percent on the year at nearly 2.5 million jobs, 1.56 percent of total employment. July was revised to a loss of 10,000. The August gain first reported on September 4 as 6,800 is now 200. Temp help is still 35,400 above December 2025, about 3,900 a month on average. Reforecast fourth-quarter billable hours from September, not August, and hold recruiter hiring until two weeks of orders confirm the trend.

SIA: Temp labor falls in September (Oct. 2) · SIA: SIA-Bullhorn Staffing Indicator, Oct. 6, 2026 · SIA: August 2026 US jobs report (Sept. 4)

DEMAND

The SIA-Bullhorn staffing indicator reached 106 for the week ending September 26, up 9 percent on the year, with industrial up 15 percent and office and clerical down 8 percent.

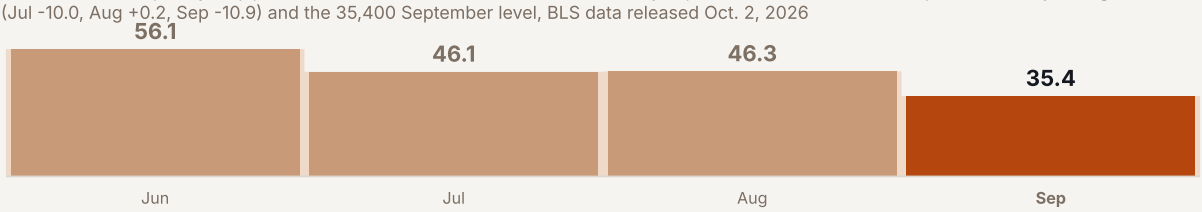
Why it matters: The indicator, released October 6, rose 3.2 percent on the week. Commercial staffing was 87 (up 11 percent year over year), professional 124 (up 8), IT 119 (up 6) and industrial 98 (up 15). Office and clerical was 60, still 8 percent below a year ago. Average weekly hours per worker were 35.3 against 35.2 a year earlier. The last four weeks are preliminary and the newest week is the likeliest to change. Match your book to these segments: if office and clerical is your base, plan for volume below last year's and set a gross-margin floor on new accounts.

SIA: SIA-Bullhorn Staffing Indicator, Oct. 6, 2026 · SIA: SIA-Bullhorn Staffing Indicator, Sept. 29, 2026

INFOGRAPHIC 3 / TEMP HELP CUSHION

Temp help's gain since December has shrunk from about 56,000 jobs in June to 35,400 in September.

Thousands of temporary help jobs above the December 2025 level, seasonally adjusted; derived from SIA's reported monthly changes (Jul -10.0, Aug +0.2, Sep -10.9) and the 35,400 September level, BLS data released Oct. 2, 2026



Temp help is still 35,400 jobs above December 2025, but the cushion shrank by about 20,700 in three months as July and September each lost about 10,000. Firms that hired recruiters against the June-to-August trend are carrying capacity the September count does not support. Revisions have been large: August went from +6,800 to +200. SIA: SIA-Bullhorn Staffing Indicator, Oct. 6, 2026

BROKERAGES AND AGENT TEAMS

TWO ITEMS

REGULATION

Connecticut's SB 340 took effect October 1, requiring sellers' agents to put one- to four-unit listings on a public platform at or before first marketing, with fines up to $5,000 per violation.

Why it matters: Private and office-exclusive listings stay legal if never publicly marketed, but the seller must sign an opt-out form, in at least 10-point type, acknowledging less visibility, possibly fewer offers and a possible adverse effect on the final sale price. Connecticut Realtors' legislative chair says sharing a private listing among separate firms counts as marketing, so large brokerages may need to adjust. Violators face license suspension or revocation, fines up to $5,000 per violation, or both. Put the opt-out form in every Connecticut listing packet now.

Real Estate News: Connecticut's private listings law · CT General Assembly: SB 340 bill analysis

LABOR

Sens. Mike Lee and John Curtis introduced the Direct Seller and Real Estate Agent Harmonization Act on September 30 to write independent-contractor status for agents into federal law, with NAR's backing.

Why it matters: The bill would have federal law recognize agents as independent contractors under the Fair Labor Standards Act, giving agents what Lee calls "clear legal status." A House companion from Rep. Kevin Kiley was introduced last year. NAR supports it, saying it would give clarity and reduce regulatory burdens. No further action has been reported. Until it becomes law, brokerages that treat agents as 1099 contractors carry the classification risk. Have your employment lawyer review your independent-contractor agreements, who controls hours and leads, and any mandatory training before year-end.

Real Estate News: Bill to give agents clear legal status

THE BACKGROUND SIGNAL

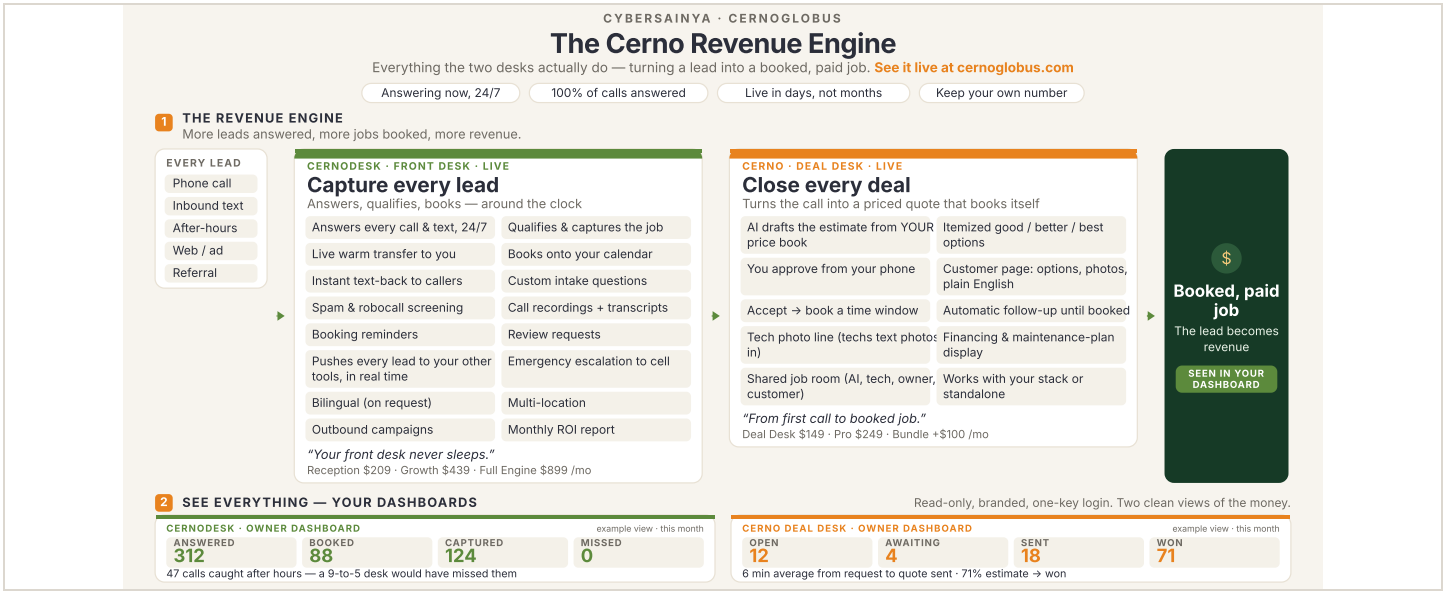
The fraud that reads your invoices before it sends one

The FBI's Internet Crime Complaint Center took 24,768 business email compromise reports in 2025, with losses of $3.05 billion — a record, after dipping to $2.77 billion in 2024 from $2.95 billion in 2023. Across all internet crime it logged 1,008,597 complaints and $20.88 billion in losses. Reported cases only, so read it as a floor.

Business email compromise, not ransomware, is the one that should concern a professional services firm. Someone gets into a mailbox, reads until they understand how you invoice and who pays you, then sends a real-looking progress billing with different bank details. No malware, no warning — just a payment that never arrives and an argument about who eats it. A firm that emails engagement letters, statements and vendor invoices all day is the shape this is built for. The quieter number is adoption: under 20% of firms with fewer than 20 staff use AI at all.

What to do about it: You don't need a security program. You need multi-factor authentication on email and your accounting login, and one rule everybody follows: nobody changes bank details on the strength of an email or a call — you ring the number you already had on file and confirm. That covers most of it, and costs nothing. The part it doesn't — how the systems are set up — is the day job of our parent company, CyberSainya.

FBI Internet Crime Complaint Center, 2025 Internet Crime Report — reported cases only, rounded from $2,946,830,270, $2,770,151,146 and $3,046,598,558. U.S. Census Bureau, Business Trends and Outlook Survey, May 3, 2026.



FREE FROM CERNOGLOBUS

Wary of AI? Start where it falls over.

Module 1 of **AI for Business Growth** is free to read — no signup, no card.

What AI is good for in a trade business, and where it breaks. Seven modules, $149. · cernoglobus.com/ai-for-business-growth

Questions? Reach out.
Corrections, tips, or something you want covered next.
info@cernoglobus.com

The Revenue Engine
See both desks running, and the pricing

AI for Business Growth
Module 1 free — no signup, no card

Subscribe
Get this brief every other Monday

CernoGlobus
Who publishes this brief, and what we build